

Court No. - 40

Case :- WRIT - C No. - 18911 of 2018

Petitioner :- Ashok Kumar Awasthi

Respondent :- U P Power Corporation Ltd And 4 Others

Counsel for Petitioner :- Atal Bihari Tripathi, A.C. Tiwari (Ac)

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner and Sri Chandan Agarwal, learned counsel for the respondent no.4.

The petitioner has come up challenging the recovery proceedings in respect of two assessment orders having been made relating to the alleged theft of electricity but the recovery is a joint recovery in respect of both the assessment orders which is being challenged on the ground that both the assessments are in violation of the procedure prescribed under Clause 6.8 of the U.P. Electricity Supply Code, 2005. It is urged that the provisional assessment was also not carried out in accordance with the terms of the Code nor any final assessment order has been passed after providing an opportunity to file objection to the petitioner.

Sri Chandan Agarwal on the basis of instructions states that it appears that since the petitioner did not file any objection timely, the provisional assessment was treated to be final and the recovery proceedings have been set into motion.

We in the aforesaid circumstances direct that the petitioner will file his objections along with a certified copy of this order before the fourth respondent within ten days from today. The respondent no.4 shall proceed to pass an appropriate order in accordance with law and the recovery proceedings shall abide by the order to be passed by the respondent no.3, Executive Engineer, Kanpur Dehat accordingly. In the event the petitioner is still aggrieved it is open to him to file an appeal before the appropriate Forum under Section 127 of the U.P. Electricity Act, 2003. The writ petition stands disposed of with the said directions.

Order Date :- 24.5.2018

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